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ACC MUMBAI-400099
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OFFICE OF THE COMMISSIONER OF CUSTOMS (EXPORT)

AIR CARGO COMPLEX, SAHAR, ANDHERI (E), MUMBAI – 400099

F. No. S/3MISC-30/2018-19 E&T (X) **Date: 29.08.2019**

INSTRUCTIONS NO. 02/2019

In any country, the time taken in releasing the goods, without any doubt, is a measure by which the international trading community can assess the effectiveness of the customs administration. The *Time Release Study (TRS)* is a strategic, internationally recognized tool to measure the actual time required for the release and/or clearance of goods, from the time of arrival until the physical release of cargo, with a view to find bottlenecks in the trade flow process and taking the corresponding necessary measures to improve the effectiveness and efficiency of border procedures. *Article 7.6* of the *WTO Trade Facilitation Agreement (TFA)*, which has been ratified by India in April, 2016 and has entered into force on 22 February 2017, also mentions about the measurements and publication of average release time of goods periodically and in a consistent manner.

2. In above background, Central Board of Indirect Taxes and Customs (CBIC) has arranged to conduct a *Time Release Study (TRS)* for the Shipping Bills to be filed between *03rd September 2019* to *09th September 2019* at major cargo complexes including Mumbai Air Cargo Complex.

3. Air Cargo Complex, Mumbai is one of the biggest Air Cargo Complexes of the country, in terms of Shipping Bills filed and Cargo handled. The performance of ACC, Mumbai will definitely have the bearing on the country's

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overall release time. It is imperative upon the office that all the possible measures may be taken to collect the accurate representative data in the form of Time-stamps related to each stage of Export Clearance. It is also required that trade and other stakeholders are sensitized about the TRS well in advance, for smooth progress of the study.

4. Hon'ble Chief Commissioner, during the meeting held on 23.08.2019 has already highlighted the importance of the TRS and has emphasized to extend full co-operation in collecting the data.

5. In this regard, a review meeting of the preparations was held on 27.08.2019 at 12:00 hours at Conference Hall, Air Cargo Complex and following decisions have been finalized for compliance:

I. During the TRS period, a team of SIIB officers will be available in the Export Shed, round the clock, for immediate NOC in deserving cases. AC (SIIB) may depute the officers well in advance for the purpose and their names should be displayed at prominent areas in Export Shed.

II. During TRS, utmost diligence is expected from the officers and the staff. No frivolous or piecemeal queries should be raised. Queries during TRS should be raised with approval of Assistant Commissioner (Shed).

III. Appraisers posted in Export Assessments are expected to assess all the Shipping Bills, making the pendency 'Nil', on their screen before leaving for the day. Intimation before leaving may be given to Joint Commissioner (Shed).

IV. Officers, to whom examination has been assigned by the ICES, should proactively call the CHA/Representative of the Exporter and examine the goods expeditiously. Examination Report should be fed in the system without any delay.

V. Superintendents posted in Export Shed are expected to promptly accord the Let Export Order. No Superintendent will extend any pendency to the next Batch

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Superintendent. Assistant Commissioner, incharge of the batch, must ensure that there is no unreasonable delay in LEO.

6. Further, It is advised that no leave (including Casual Leave) should be sanctioned to any officer during the TRS period. Leaves owing to any emergency may be sent to Joint Commissioner, E&T for approval.

7. Instructions above may be followed in letter and spirit.

8. Notwithstanding anything mentioned above, it is categorically clarified that there should be no compromise on efficacy of Examination and observance of law in force, even during TRS period.

9. This issues with the approval of Commissioner, Exports.

25/8/19

Tapan Kumar

Joint Commissioner

To,

All the officers and staff of Export Commissionerate.

Copy for information to: Chief Commissioner of Customs, Mumbai, Zone-III.

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